

TENTATIVE RULINGS

FOR: July 24, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBIla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

Join by Video

<https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

**“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer.
(Cal. Rules of Court, Rule 1.150(c) & (d))**

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

**Niebaum Coppola Estate Winery, LP et al v.
George Giles Beeker et al**

24CV001130

DEFENDANT AND CROSS-COMPLAINANT KERRI L. BEEKER'S MOTION FOR LEAVE TO FILE SECOND AMENDED CROSS-COMPLAINT NAMING FRANCIS FORD COPPOLA AS A CROSS-DEFENDANT

TENTATIVE RULING: The motion is GRANTED. Defendant and Cross-Complainant Kerri L. Beeker is granted 10 calendar days' leave, from entry of the instant order, to file a Second Amended Cross-Complaint in substantially the same form as that attached as Exhibit A to the Declaration William T. Webb filed in support of the instant Motion.

Ms. Beeker moves, pursuant to Code of Civil Procedure section 428.50, subdivision (c) (Section 428.50(c)), for an order granting leave to file Second Amended Cross-Complaint (SACC) naming Francis Ford Coppola as a cross-defendant. Ms. Beeker so moves on grounds that "[t]he claims against Mr. Coppola arise from the same transaction already at issue in this action; the same firm represents him and the entities he is alleged to own and control; there is no prejudice; and there is no bad faith." (Notice of Motion at 2:13-15.)

As discussed in the Court's June 23, 2026 Minute Order granting Cross-Defendant Francis Ford Coppola's Motion To Strike Kerri L. Beeker's First Amended Cross-Complaint, in the procedural circumstances of the instant action, Ms. Beeker is required to obtain leave of Court to file the proposed SACC. (See Section 428.50(c).) "Leave may be granted in the interest of justice at any time during the course of the action." (*Ibid.*)

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a).) Similarly, "[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." (Code Civ. Proc., § 576.)

Typically, a court will exercise its discretion liberally in favor of allowing amendment of the pleadings in order that litigation may be tried on its merits. (See *Kauffman v. Bobo & Wood* (1950) 99 Cal.App.2d 322, 323.)

In opposing the Motion, Plaintiffs and Cross-Defendants do not argue that leave to amend, itself is unwarranted. Rather, they argue that the proposed SACC is fatally flawed in certain regards. Specifically, Plaintiffs and Cross-Defendants contend that the proposed Civil

Code section 3412 claim is futile as Cross-Complainant lacks standing to assert it. (See, *e.g.*, Opposition at 5:21-24.) They further contend that all of the proposed claims against Francis Ford Coppola are barred by the relevant statute(s) of limitations. (See, *e.g.*, *id.* at 12:9, *et seq.*)

While the Court is authorized to deny a motion for leave to file an amended pleading on grounds of futility, in the Court's experience, the better approach is to permit the amendment and address arguments regarding deficiencies therein in the context of demurrers, and/or motions to strike.

Based on the foregoing, the Motion is GRANTED.

.....
Saint John's Evangelical Lutheran Church v. Faith Lutheran Church of Napa

26CV000538

PLAINTIFF'S APPLICATION FOR JUDGMENT UNDER CALIFORNIA CODE OF CIVIL PROCEDURE § 764.010

APPEARANCE REQUIRED.

Plaintiff St. John's Evangelical Lutheran Church ("Plaintiff") applies, pursuant to Code of Civil Procedure section 764.010,¹ for entry of judgment quieting title to the real property commonly known as 2790 Kilburn Avenue, Napa, California 94558, Napa County Assessor's Parcel No. 004-081-020. Plaintiff so moves on the grounds that Plaintiff has established each and every element of adverse possession under California law.

Pursuant to section 764.010, "[t]he court shall examine into and determine the plaintiff's title against the claims of all the defendants. The court shall not enter judgment by default but shall in all cases require evidence of plaintiff's title and hear such evidence as may be offered respecting the claims of any of the defendants, other than claims the validity of which is admitted by the plaintiff in the complaint. The court shall render judgment in accordance with the evidence and the law."

Plaintiff attempts to establish Plaintiff's title via adverse possession by the Declaration of Thomas F. Carey and Declaration of Michael Schmid. Despite the fact that no opposition has been filed or is expected,² and the fact that default was entered against Defendant Faith Lutheran Church of Napa ("Defendant") on June 26, 2026, California courts require an evidentiary prove-up hearing with live testimony and other admissible evidence to determine Plaintiff's title.

"Such a hearing is mandatory: '[A] quiet title judgment requires a hearing in open court. Although section 764.010 does not mandate oral argument—and we do not hold oral argument is necessary, though it may be helpful—the statute requires examining plaintiff's title and hearing defendant's evidence 'in all cases.' ... [¶] The court clearly acts as a fact finder and adjudicates issues when it determines whether to quiet title in the plaintiff.... [T]he statute does not explicitly

¹ All subsequent statutory references are to the Civil Code unless otherwise noted.

² See Mem., 3:1-2 and Carey Decl., ¶ 6.

permit evidentiary objections, [but] we believe this feature is implicit in the portion of the statute that ‘require[s] evidence of plaintiff’s title’ and requires the court to hear defendant’s evidence. If evidence is to be received, the court must fulfill its gatekeeper function, and that would require considering objections. The court must decide whether the evidence is sufficient in any event, because it must render judgment ‘in accordance with the evidence....’ ... Allowing objections from each side assists the court in making this determination. Finally, a quiet title judgment clearly involves a matter of considerable significance to the parties. If quiet title is the sole cause of action, the hearing is, in effect, the trial of the entire matter.... [I]t warrants an open-court hearing.” (*Nickell v. Matlock* (2012) 206 Cal.App.4th 934, 944-45, quoting *Harbour Vista, LLC v. HSBC Mortgage Services Inc.* (2011) 201 Cal.App.4th 1496, 1507-08.)

“All proof that plaintiff would have had to present at trial, however, must be presented at that hearing; a declaration or other summary procedure will not be permitted. Live witnesses must testify, and complete authentication of the underlying real property records is essential.” (*Yeung v. Soos* (2004) 119 Cal.App.4th 576, 581.) In clarifying *Yeung*’s holding, *Nickell v. Matlock* (2012) 206 Cal.App.4th 934, 947 states “notwithstanding a defendant’s default in a quiet title action, the plaintiff is not automatically entitled to judgment in its favor but must prove its case in an evidentiary hearing with live witnesses and any other admissible evidence.”

Thus, Plaintiff’s appearance is required for an evidentiary prove up hearing.

.....
Luis Fernandez v. Sager Automotive Group

26CV000674

PETITION TO COMPEL ARBITRATION; DISMISS PUTATIVE CLASS CLAIMS; AND
STAY PROCEEDINGS

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Defendant Sager Automotive Group (SAG) moves, pursuant to the Federal Arbitration Act, 9 U.S.C. § 1 *et seq.*, and the California Arbitration Act, Code of Civil Procedure § 1281.2, for an order compelling plaintiff to arbitrate all individual claims against Defendants, to the extent he has any, arising from or associated with his employment with Defendants, including but expressly not limited to the individual claims (including any individual PAGA claims that may hereafter be asserted in this or any other forum) raised by Plaintiff in his Complaint.

A. LEGAL ANALYSIS

1. SAG Carries its Burden of Showing an Agreement to Arbitrate Plaintiff's Claims

A proceeding to compel arbitration is, in essence, a suit in equity to compel specific performance of a contract. (*California Teachers Assn. v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399.) On a motion to compel arbitration, supported by prima facie evidence of a written agreement to arbitrate the underlying controversy, the court must determine whether the agreement exists and, if any defense to its enforcement is raised, whether the agreement is enforceable. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996) 14 Cal.4th 394, 413.) The moving party bears the burden of proving the existence of the agreement by a preponderance of the evidence. (*Ibid.*) The opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Ibid.*) California law strongly favors arbitration. (*Prima Donna Development Corp. v. Wells Fargo Bank, N.A.* (2019) 42 Cal.App.5th 22, 35 (*Prima Donna*).)

Defendant presents evidence that, “[a]ll personnel who commence or continue employment with the Company are required to comply with the alternative dispute resolution policy, which includes the mandatory arbitration of employment-related claims.” (Declaration of Lisa Anderson at ¶ 5 (Anderson Decl.)) Exhibit 1 to the Anderson Decl. contains a document titled Applicant Statement and Agreement. That writing contains the arbitration terms upon which the present motion and petition are based (Arbitration Agreement). Defendant presents evidence that, “Each individual [employee] is made aware of the [alternative dispute resolution] policy and . . . employees who commence or continue work following notice of the dispute resolution policy accept the terms thereof through their conduct in accepting or continuing the accept employment benefits, including but not limited to compensation, under the terms and conditions of their employment . . .” (*Ibid.*)

Plaintiff appears to concede the foregoing through the Opposition. Plaintiff further appears to concede that he signed the Arbitration Agreement as part of his employment. (See, e.g., Declaration of Luis Fernandez at ¶ 4 (Fernandez Decl.))

The scope of the Arbitration Agreement is exceptionally broad, and includes, with expressly enumerated exceptions, “any claims I might have against [SAG] that currently exist or that may arise in the future” as well as “all claims . . . against [SAG] (and any third-party beneficiaries) . . . [including] any and all claims which arise out of the employment context or any other interaction/relationship we had, have or may have in the future.” (Arbitration Agreement at ¶ 4.) The Arbitration Agreement further provides that “Third-party beneficiaries include the Company’s owners, directors, officers, managers, employees, agents, partners, attorneys, sister-companies, subsidiaries, parent companies, joint-venturers, affiliated persons/entities, independent contractors, and parties affiliated with its employee benefit and health plans. These claims also include any claims arising from, related to, or having any relationship or connection whatsoever with my seeking employment with, employment by, or other association with the Company or third-party beneficiaries, whether based on tort, contract, statute, equity or otherwise.” (*Ibid.*)

Based on the foregoing, the Court finds that SAG has carried its initial burden of proving the existence of an agreement to arbitrate the present dispute

2. The Court Exercises Its Discretion and Declines to Enforce the Arbitration Agreement

Mr. Fernandez argues that the Arbitration Agreement is unenforceable pursuant to the doctrine of unconscionability.

The FAA generally restricts states' rights to limit the enforceability of arbitration agreements or clauses. (See *Prima Donna, supra*, 42 Cal.App.5th at 36.) However, "the FAA contains a 'saving clause,' which 'permits agreements to arbitrate to be invalidated by generally applicable contract defenses, such as fraud, duress, or unconscionability.'" (*Id.*, quoting *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.)

The central inquiry in resolving a claim of unconscionability is whether the contract provisions were unconscionable at the time they were made. (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1133–1134.) The defense is "inherently fact specific." (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 138.) "The burden of proving unconscionability rests upon the party asserting it." (*Id.* at 126.) Under the FAA, unconscionability claims are to be resolved by the trial court before enforcing an arbitration agreement. (*Id.* at 138.)

"A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree and the contract contains terms that are unreasonably favorable to the other party." (*OTO, L.L.C. v. Kho, supra*, 8 Cal.5th at 125.) Thus, the doctrine of unconscionability has both a procedural and a substantive element. (*Ibid.*) "'The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power. [Citations.] Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided.' [Citation.]" (*Ibid.*)

"'The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.' (Citation.) But they need not be present in the same degree. 'Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves.' (Citation.) In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.'" (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 abrogated on other grounds by *AT&T Mobility LLC v. Concepcion* (2010) 563 U.S. 333, [131 S.Ct. 1740, 179 L.Ed.2d 742].)

a. *The Circumstances of the Contract's Formation Created Significant Oppression*

For procedural unconscionability, the “pertinent question” is “whether circumstances of the contract’s formation created such oppression or surprise that closer scrutiny of its overall fairness is required.” (*OTO, L.L.C. v. Kho*, *supra*, 8 Cal.5th at 126.) “Oppression occurs where a contract involves lack of negotiation and meaningful choice, surprise where the allegedly unconscionable provision is hidden within a prolix printed form.” (*Ibid.*) ““The circumstances relevant to establishing oppression include, but are not limited to (1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party’s review of the proposed contract was aided by an attorney.”” (*Id.* at 126-127 quoting *Grand Prospect Partners, L.P. v. Ross Dress for Less, Inc.* (2015) 232 Cal.App.4th 1332, 1348.)

The Court finds that the undisputed circumstances relating to the creation of the Arbitration Agreement weighs in favor of a finding of oppression as to each of the foregoing categories. SAG concedes that the Arbitration Agreement is a contract of adhesion. (See Reply at 4:26.) As discussed above, it is uncontested that Plaintiff was given no opportunity to negotiate the terms governing arbitration of any dispute. Rather, as an employee, Mr. Fernandez, by “commenc[ing] [and] continu[ing] work following notice of the dispute resolution policy accept[ed] the terms thereof through [his] conduct in accepting or continuing [to] accept employment benefits, including but not limited to compensation, under the terms and conditions of their employment” (Anderson Decl. at ¶ 5.) It therefore appears that Mr. Fernandez’ only means for avoiding the provisions of the Arbitration Agreement was to decline Defendant’s offer of employment.

The Court finds that the number and substance of the provisions in the Arbitration Agreement renders it significantly complex. (See Arbitration Agreement at §§ 3-14.) Moreover, the language of the Arbitration is often prolix and unnecessarily opaque. For example, the provisions governing the costs of arbitration are so vague and ambiguous that they defy reasonable interpretation. (See, *e.g.*, *id.* at ¶ 8.) In addition, the paragraphs relating to arbitration are sandwiched between paragraphs relating to matters entirely unrelated thereto. (See *id.* at ¶¶ 1-2 and 15-17.)

There is no evidence before the Court regarding Mr. Fernandez’ education. There is, however, evidence that, prior to the instant proceedings, Plaintiff had never heard of arbitration. (See Fernandez Decl. at ¶ 6.) It is reasonable to infer, from this evidence, that Mr. Fernandez is without significant legal experience or legal education and that his review of the Arbitration Agreement was not aided by an attorney. Moreover, Plaintiff presents evidence that no one explained to him the nature of the Arbitration Agreement. It is also worth noting that, “the arbitration agreement itself does not explain what arbitration means....” (*Carmona v. Lincoln Millennium Car Wash, Inc.* (2014) 226 Cal.App.4th 74, 84.) The foregoing circumstances are consistent with SAG’s evidence that, simply by accepting employment, Plaintiff was agreeing to

the terms of the Arbitration Agreement. In this context, Plaintiff's review and/or understanding of the terms was, from SAG's perspective, appears to have been irrelevant.

The Court finds, therefore, that the circumstances of the Arbitration Agreement's formation warrant close scrutiny of the fairness of its substantive terms.

b. *Provisions of the Agreement are Substantively Unconscionable*

"Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 246.) "To reiterate, we assess unconscionability with a sliding scale approach. [Citation.] In light of the high degree of procedural unconscionability, even a low degree of substantive unconscionability could render the arbitration agreement unconscionable." (*Carmona v. Lincoln Millennium Car Wash, Inc.* (2014) 226 Cal.App.4th 74, 85.) "Given the lack of choice and the potential disadvantages that even a fair arbitration system can harbor for employees, we must be particularly attuned to claims that employers with superior bargaining power have imposed one-sided, substantively unconscionable terms as part of an arbitration agreement. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 115.)

The Court finds that the Arbitration Agreement is virtually unlimited in scope, encompasses claims unrelated to Plaintiff's employment, and is unlimited in duration.³ "By signing my name below and/or by accepting and/or continuing employment with the Company, I agree to pursue any claims I might have against the Company that currently exist or that may arise in the future exclusively through binding arbitration." (Arbitration Agreement at ¶ 3.) "Our agreement to arbitrate includes any and all claims which arise out of the employment context or any other interaction/relationship we had, have or may have in the future." (*Id.* at ¶ 4. Emphasis added.) For example, by the terms of the Arbitration Agreement, if, after the employment relationship ended, Mr. Fernandez were to purchase an automobile from SAG, or have a vehicle serviced by SAG, any dispute relating to that purchase or servicing would fall within the scope of this arbitration agreement.

"We recognize that employment contracts can provide a 'margin of safety' that grants extra protection to the party with superior bargaining power if there is a legitimate commercial need for doing so. [Citation.] However, unless the 'business realities' that give rise to that special need are explained in the contract itself, they must be factually established." (*Cook v. University of Southern California* (2024) 102 Cal.App.5th 312, 324 (*Cook*)). The Court finds, in the Arbitration Agreement itself, no explanation for the extra protection provided SAG by its scope. SAG does not provide any discussion, explanation, or evidence tending to support any such business realities giving rise to any special need for the breadth of the scope of the Arbitration Agreement.

Moreover, and even more troubling, the Arbitration Agreement requires Mr. Fernandez to arbitrate *any* claims (again unlimited in scope) against third-party beneficiaries to the Arbitration

³ The only limitations on the scope are express and related to certain employment claims. (See Arbitration Agreement at ¶¶ 3-5.)

Agreement which are defined exclusively as persons affiliated with *Defendant*. (See *id.* at ¶ 3-4.) “I understand that this agreement requires me to pursue all claims I bring against the Company (and any third-party beneficiaries) through binding arbitration and requires that the Company submit any claims it has against me to binding arbitration (except for those claims specifically excluded by this agreement).” (*Id.* at ¶ 4.) The only definition provided for the phrase “third-party beneficiaries” is “[t]hird-party beneficiaries include the Company’s owners, directors, officers, managers, employees, agents, partners, attorneys, sister-companies, subsidiaries, parent companies, joint-venturers, affiliated persons/entities, independent contractors, and parties affiliated with its employee benefit and health plans.” (*Ibid.*) There is nothing in the Arbitration Agreement, that the Court can find, that would require any of these “third-party beneficiaries” to arbitrate any claims they may have against Mr. Fernandez.

It appears uncontested that Mr. Fernandez worked as a sales associate for SAG. It seems entirely plausible to imagine that Mr. Fernandez, after leaving this employment, might seek employment with another dealership, or affiliate, that falls within the broad category of third-party beneficiaries. The third-party beneficiary, pursuant to the terms of the Arbitration Agreement, would have the right to compel Mr. Fernandez to arbitrate any dispute relating to *that* subsequent employment. Mr. Fernandez would have no corresponding right. Similarly, it is conceivable that Mr. Fernandez could have a claim against a fellow employee of SAG arising entirely outside of their employment. Again, the fellow employee would have the right, pursuant to this Arbitration Agreement to compel Mr. Fernandez to arbitrate such dispute.

“The concern here is not that the arbitration agreement provides ancillary benefits to third parties. The concern is that the agreement provides benefits to broad swaths of third-party beneficiaries only in favor of [the employer] without any showing of justification for this one-sided treatment. This confers a benefit on [the employer] and its broadly defined “related entities” that is not mutually afforded to [the employee].” (*Cook, supra*, 102 Cal.App.5th at 326-327.) “[N]onsignatories may enforce an arbitration agreement against a party to the agreement simply by showing they are intended third party beneficiaries of the arbitration agreement. [Citation.] Where the agreement requires arbitration of claims against certain classes of third parties, nonsignatories can make ‘a prima facie showing sufficient to allow them to enforce the arbitration clause as third party beneficiaries’ simply by showing they fall within one of the classes of beneficiaries identified by the contract. [Citation.] [¶] Conversely, for [employee] to enforce the arbitration agreement against [employer’s] agents or employees as third party beneficiaries, she would have to show they actually accepted a benefit under the agreement. [Citations.] It is difficult to imagine how [employee] could carry this burden to compel [employer’s] employees and agents to arbitration unless those specific agents or employees first moved to compel arbitration under the agreement. While it is theoretically possible for [employee] to make this showing, it is unlikely. [Citation.] [¶] The plain language of the arbitration agreement thus provides a significant benefit to [employer’s related entities] without any reciprocal benefit to [employee].” (*Cook, supra*, 102 Cal.App.5th at 328.)

Again, there is no explanation, in the Arbitration Agreement, for this extra protection afforded to SAG and to SAG’s owners, directors, officers, managers, employees, agents, partners, attorneys, sister-companies, subsidiaries, parent companies, joint-venturers, affiliated persons/entities, independent contractors, and parties affiliated with its employee benefit and

health plans. SAG fails, through the moving and reply papers, to suggest any explanation and/or to provide evidence relating thereto.

The Court agrees with Mr. Fernandez that the foregoing attributes of the Arbitration Agreement are overly harsh, one-sided, unfair, and therefore render the Arbitration Agreement substantively unconscionable pursuant to the holding in *Cook*, discussed above.

c. *The Unconscionable Provisions Permeate the Agreement and are Not Severable*

SAG argues that this Court is required to sever any provisions it deems unconscionable.

“If the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may so limit the application of any unconscionable clause as to avoid any unconscionable result.” (Civil Code § 1670.5.)

SAG contends that, “[i]n this case, the provisions alleged to be substantively unconscionable are collateral to the main purpose of the agreement: the agreed-upon speedy resolution of disputes between Plaintiff and Defendant arising from Plaintiff’s employment.” (Reply at 11:9-12.)

The Court disagrees with SAG as to both assertions ((1) that the provisions alleged to be substantively unconscionable are collateral to the main purpose of the agreement *and* (2) that the purpose of the agreement is to resolve only disputes between Plaintiff and Defendant arising from Plaintiff’s employment). Again, the Arbitration Agreement was a contract of adhesion. It was written by SAG and presented to Mr. Fernandez with no opportunity to negotiate or suggest changes. In this context, had SAG intended to draft an agreement that was limited to “resolution of disputes between Plaintiff and Defendant arising from Plaintiff’s employment,” it could have. As discussed above, it did not.

““An unconscionable contractual term may be severed and the resulting agreement enforced, unless the agreement is permeated by an unlawful purpose, or severance would require a court to augment the agreement with additional terms. [Citation.]’ [Citation.] Severance may be properly denied when the agreement contains more than one unconscionable provision, and ““there is no single provision a court can strike or restrict in order to remove the unconscionable taint from the agreement.” [Citation.]’ [Citation.]” (*Cook, supra*, 102 Cal.App.5th at 328-329.)

The Court finds that the central purpose of the Arbitration Agreement, as drafted, is not simply to provide a speedy resolution of disputes between Mr. Fernandez and SAG arising from Mr. Fernandez’ employment. Rather, the central purpose of the Arbitration Agreement is to obligate Mr. Fernandez to arbitrate any and all claims, arising at any time and relating to any matter, that Mr. Fernandez has against SAG and/or any one or more of SAG’s “owners, directors, officers, managers, employees, agents, partners, attorneys, sister-companies, subsidiaries, parent companies, joint-venturers, affiliated persons/entities, independent

contractors, and parties affiliated with its employee benefit and health plans,” while obligating only SAG, but not any of the foregoing “third-party beneficiaries,” to arbitrate their own claims against Mr. Fernandez. The overly harsh and one-sided consequence of the Arbitration Agreement arises from those provisions defining the scope of disputes subject to arbitration and the parties subject thereto. It does not appear controversial to suggest that the central purpose of any arbitration agreement is defined by those of its provisions defining the scope of claims to arbitrated thereunder, and identification of the parties thereto. For this reason, the Court finds that the overly harsh and unfair advantage to SAG arising under the terms of the Arbitration Agreement permeate the entirety thereof.

The Court does not find that it can eliminate this unfair advantage – by, for example, converting the Arbitration Agreement into one whose central purpose is “the speedy resolution of disputes between Plaintiff and Defendant arising from Plaintiff’s employment” – merely by severing one or more collateral provisions from the Arbitration Agreement. Rather, in order to accomplish the foregoing, the Court would be forced to redraft those provisions relating to the agreement’s scope and to the identification of the parties subject to and covered thereby.

Moreover, doing so would amount to a windfall for SAG. Again, given the adhesive nature of the agreement, SAG had every opportunity to draft precisely the arbitration agreement it desired. Having drafted it in a fashion that provided SAG and its third-party beneficiaries with significant potential unfair advantage, it now asks the Court to tailor the agreement to fit only those claims now asserted by Mr. Fernandez – those arising out of the employment relationship. To do so would constitute a windfall to SAG.

The Court finds that the overly harsh and one-sided scheme created by these provisions at the heart of the Arbitration Agreement, particularly in the context of the significant oppression characterizing the Arbitration Agreement’s formation, “indicate a systematic effort to impose arbitration on an employee not simply as an alternative to litigation, but as an inferior forum that works to the employer’s advantage. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 124.)

Based on the foregoing, the Court elects to exercise its discretion and not enforce the Arbitration Agreement. (See Civil Code § 1670.5.)

**** at 11:30 a.m. ****

Mark Andrews v. Richard Rockwell et al

24CV000304

DEFENDANT ENTERPRISE RENT-A-CAR CO. OF SAN FRANCISCO, LLC’S MOTION
TO STRIKE THE FIRST AMENDED COMPLAINT AND DEMURRER

TENTATIVE RULING: The Anti-SLAPP motion is GRANTED. The Demurrer is therefore MOOT.

A. PROCEDURAL MATTERS

Defendant Enterprise Rent-A-Car Co. of San Francisco, LLC (“Enterprise”) moves, pursuant to Code of Civil Procedure section 425.16, subdivision (e)(1),⁴ for an order striking all causes of action asserted against Enterprise in the Amended Complaint (“Amended Complaint”) filed by Plaintiff Mark Andrews (“Plaintiff”) on 12/3/2025 or, in the alternative, dismissing the Amended Complaint. If the Court declines to grant Enterprise’s anti-SLAPP motion, Enterprise demurs to all causes of action against Enterprise due to failure to state a claim upon which relief can be granted. (Notice, 3:4-7.)

1. Enterprise’s Request for Judicial Notice

Enterprise’s Request for Judicial Notice is DENIED on the ground that none of the subject documents are relevant to the Court’s resolution of the issues raised by the present motion. (*In re Tobacco Cases, II*, JCCP 4042 (2004) 123 Cal.App.4th 617, 626 [“Although a court may take judicial notice of a variety of matters, only relevant material may be noticed.”].)

2. Nature of Amended Complaint Against Enterprise

The nature of the Amended Complaint against Enterprise is that: (1) following a vehicle collision between Plaintiff and Defendant Richard Rockwell (“Rockwell”), for which Rockwell admitted fault, Rockwell’s vehicle insurer, Defendant Tesla Insurance Services (“Tesla”), arranged for Plaintiff to obtain a rental vehicle from Enterprise on or about March 5, 2022; (2) Tesla agreed to pay Enterprise directly for all rental charges; (3) Tesla stopped paying Enterprise on or about April 19, 2022;⁵ and (4) Enterprise filed a false stolen-vehicle police report against Plaintiff with the Santa Rosa Police Department without probable cause and without first contacting Tesla about payment. (Amd. Compl., ¶¶ 8-16, 57.)

Plaintiff alleges that, as a result of Tesla’s and Enterprise’s conduct, (1) Plaintiff was stopped by law enforcement on June 5, 2022; (2) at least five police vehicles executed a felony stop on Highway 29 in Napa County; (3) Plaintiff was ordered out of the rental vehicle at gunpoint, handcuffed, and arrested; (4) Plaintiff spent one day in jail before being released; (5) a second arrest warrant was issued in Sonoma County for the same alleged offense; (6) Prosecutors informed Plaintiff they intended to pursue felony charges carrying a possible ten-year sentence; (7) the Napa criminal case was dismissed on April 17, 2024 following a finding that the matter was civil in nature; and (8) Plaintiff has not been reimbursed for any losses or received an apology from Enterprise. (*Id.*, ¶¶ 18-27.)

The Amended Complaint asserts eight causes of action. The First and Second Causes of Action are against Tesla only. The Eighth Cause of Action for Malicious Prosecution is against Enterprise only. The Amended Complaint fails to clearly specify against which of the three

⁴ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

⁵ This date in the Amended Complaint is April 19, 2023, but the evidence presented by the parties in connection with the present motion confirms the date is April 19, 2022. (Declaration of Gregory Burgos (“Burgos Decl.”), ¶ 17; Declaration of Mark Andrews (“Andrews Decl.”), ¶ 3.)

Defendants the Third, Fourth, Fifth, Sixth, and Seventh Causes of Action are asserted, only vaguely using “Defendants” in the allegations.

Enterprise does not specify which causes of action it contends are asserted against it; however, it appears to understand that more than the Eighth Cause of Action is asserted against it. (See Mem., 18:24-19:9; Reply, 6:20-22.) Plaintiff’s Opposition does not clarify which causes of action are asserted against Enterprise. The only cause of action specifically referenced in Opposition is the Eighth Cause of Action for Malicious Prosecution. Otherwise, Plaintiff generally references “remaining tort claims.” For purposes of the anti-SLAPP motion, the Court will assume that the Third, Fourth, Fifth, Sixth, Seventh, and Eighth Causes of Action are intended to be asserted against Enterprise. The Court’s review of the Amended Complaint confirms that the sole factual basis upon which Enterprise is purportedly liable is Enterprise’s alleged filing of a false police report.

B. LEGAL STANDARD

“The special motion to strike established in section 425.16 may be used to attack a cause of action if (1) the cause of action arises from ‘any act [by the defendant] in furtherance of the person’s right of petition or free speech under the United States or California Constitution,’ and (2) the defendant was exercising his or her right of free speech ‘in connection with a public issue.’ (Citation.) If the moving defendant establishes those two elements, the burden shifts to the plaintiff to establish there is a probability he or she will prevail on the cause of action.” (*Chabak v. Monroy* (2007) 154 Cal.App.4th 1502, 1511.) “The anti-SLAPP statute’s definitional focus is not the form of the plaintiff’s cause of action but, rather, the defendant’s activity that gives rise to his or her asserted liability – and whether that activity constitutes protected speech or petitioning.” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 92 (*Navellier*)).

C. DISCUSSION

1. It is Undisputed that the Activity Giving Rise to Plaintiff’s Claims Against Enterprise is Protected Activity Under the Statute

Plaintiff expressly does not dispute that the factual basis for the claims against Enterprise in the Amended Complaint—Enterprise filing a police report—arises from protected activity under section 425.16. (See Mem., 15:9-17:14; Opp. 9:19-21 [“Plaintiff concedes for purposes of this motion that Enterprise’s report to the Santa Rosa Police Department constitutes protected petitioning activity....”].)

As such, the burden shifts to Plaintiff to establish there is a probability he will prevail on the causes of action.

2. Plaintiff has Failed to Establish a Probability of Prevailing on his Claims Against Enterprise

“[I]n order to establish the requisite probability of prevailing (§ 425.16, subd. (b)(1)), the plaintiff need only have ‘stated and substantiated a legally sufficient claim.’ [Citations.] ‘Put

another way, the plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’ [Citations.]’ (*Navellier, supra*, 29 Cal.4th at 88-89.) “To show a probability of prevailing for purposes of section 425.16, a plaintiff must make a prima facie showing of facts which would, if proved at trial, support a judgment in plaintiff’s favor.” (*Alpha & Omega Dev., LP v. Whillock Contracting, Inc.* (2011) 200 Cal.App.4th 656, 663.) Because the burden on the plaintiff is similar to the standard used in determining motions for summary judgment, “[t]he showing must be made through ‘competent and admissible evidence.’ [Citations.] Thus, declarations that lack foundation or personal knowledge, or that are argumentative, speculative, impermissible opinion, hearsay, or conclusory are to be disregarded.” (*Gilbert v. Sykes* (2007) 147 Cal.App.4th 13, 26.)

a. Plaintiff Fails to Meet his Burden to Show a Probable Likelihood of Prevailing on his Claims Under the Theory Against Enterprise Pled in the Complaint

Plaintiff’s only discussion, under the second prong, regarding the theory that Enterprise filed a false police report is brief. (See Opp., 14:21-15:15.) Plaintiff’s entire argument is simply to dispute Enterprise’s claim that the false police report allegations are barred by the litigation privilege under Civil Code section 47, subdivision (b). (*Ibid.*) Plaintiff argues that the Malicious Prosecution claim and “remaining tort claims” survive the litigation privilege because the exception under subdivision (b)(5) allows in communications made with reckless disregard for their truth, or falsity. (*Id.*)

However, Plaintiff does not specify the “remaining tort claims,” does not discuss the legal elements thereof, and does not identify or discuss the facts supplying each element. Thus, even assuming, *arguendo*, the false police report allegations that purportedly underlie those claims survive the litigation privilege, that fact, alone, is insufficient to make a prima facie showing that Plaintiff is likely to prevail on any tort claims.

With respect to the Malicious Prosecution claim, Plaintiff fails to identify which element thereof the false police report allegation supplies. Plaintiff has therefore failed to meet his burden on this ground alone.

Even assuming, *arguendo*, the false police report allegation, alone, would satisfy all elements of a malicious prosecution claim, Plaintiff fails to make a prima facie showing that Enterprise acted with reckless disregard for the truth, or falsity, with respect to the police report. Plaintiff’s sole argument is that Enterprise’s own evidence demonstrates that it urged the police department to treat the matter as grand theft, despite Enterprise telling the police officer that the issue arose from Tesla failing to pay on behalf of Plaintiff, and despite Enterprise’s internal records reflecting that the matter was simply a collections issue. (Opp., 15:1-5.) Plaintiff argues that, based on his interpretation of the evidence, there is a factual dispute as to whether Enterprise’s conduct satisfies reckless disregard, and, therefore, the issue cannot be resolved on this Motion.

First, Plaintiff misstates the facts presented by Enterprise. There is no evidence therein showing that Enterprise urged the police department to treat the matter as grand theft, or omitted

any facts from which the embezzlement circumstance arose. Rather, Enterprise's evidence shows:

- On April 22, 2022, Enterprise sent Plaintiff a letter stating, in part, that if he failed to immediately return the vehicle, Enterprise will presume the vehicle is embezzled and will report the embezzlement to the local Police Department and ask that charges be filed. (Burgos Decl., ¶ 18, Exh. D (4/6/26 Amendment).)
- On April 26, 2022, Enterprise advised Plaintiff in a phone conversation that he needed to return the vehicle as soon as possible or come in and update his payment, otherwise the vehicle would be reported stolen as is consistent with Enterprise's standard business practice for unreturned vehicles. (*Id.*, ¶ 19.)
- On June 2, 2022, "Enterprise reported to Officer Alvarez at the Santa Rosa Police Department that the Subject Vehicle had been embezzled. Enterprise communicated the history outlined [in the Burgos Decl.] and provided the relevant call log. Enterprise understands that Officer Alvarez memorialized his discussion with Enterprise in an Incident/Investigation Report. Enterprise obtained a copy of the Incident/Investigation Report via a Police Records Retrieval on LexisNexis [and attaches it as Exhibit E]." (*Id.*, ¶ 21, Exh E. (4/6/26 Amendment).)

Second, Plaintiff's contention that there is a factual dispute is not entirely accurate. Plaintiff does not object to the Burgos Decl. Rather, the issue Plaintiff raises in Opposition is a dispute of whether the undisputed facts presented by Enterprise satisfy reckless disregard or falsity. *That* dispute appears to be a legal determination appropriate for the Court on an anti-SLAPP. (*Mitchell v. Twin Galaxies, LLC* (2021) 70 Cal.App.5th 207, 217 ["[T]hough the court does not weigh the credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant's evidence supporting the motion defeats the plaintiff's attempt to establish evidentiary support for the claim."].)

The Court finds that the evidence supports Enterprise's position that its police report is consistent with the Rental Agreement between Enterprise and Plaintiff, as well as Enterprise's contemporaneous, internal business records and therefore was not made with reckless disregard for the truth or falsity, was made with probable cause, and without malicious intent. (See generally Burgos Decl.)

For all the foregoing reasons, Plaintiff has failed to establish a prima facie showing of success on his claims against Enterprise under the theory asserted in the Amended Complaint.

b. Plaintiff has Failed to Satisfy his Burden to Show a Probability of Prevailing on the Eighth Cause of Action for Malicious Prosecution Under his New Theory Advanced in Opposition

The main thrust of Plaintiff's Opposition is that there is a probability of prevailing on his Eighth Cause of Action for Malicious Prosecution based on a theory that Enterprise failed to take any action once Plaintiff had been charged in two felony prosecutions; for example to correct, supplement, or withdraw the police report that Enterprise knew was predicated upon a civil insurance dispute. (Opp., 5:6-7, 7:17-20, 8:4-8, 10:1-14:17.) This primary theory advanced by

Plaintiff in Opposition does not appear in the Amended Complaint as a basis for Enterprise's liability and, as such, is not a proper basis upon which to defeat an anti-SLAPP motion. (See *Medical Marijuana, Inc. v. ProjectCBD.com* (2020) 46 Cal.App.5th 869, 883 ["issues in an anti-SLAPP motion are framed by the pleadings"].) The court will not "insert into a pleading claims for relief based on allegations of activities that plaintiffs simply have not identified It is not [the court's] role to engage in what would amount to a redrafting of [a] complaint in order to read that document as alleging conduct that supports a claim that has not in fact been specifically alleged, and then assess whether the pleading that [the court has] essentially drafted could survive the anti-SLAPP motion directed at it." (*Ibid.* Emphasis in Original.) This makes sense because a moving party has no possibility of meeting their burden of proof on an anti-SLAPP motion as to a theory not pled in a complaint.

Because a plaintiff cannot rely on a theory not identified in his or her pleading to prevail on an anti-SLAPP motion, Plaintiff's new theory advanced in Opposition may properly be disregarded and the motion GRANTED.

That said, even to the extent the Amended Complaint could be viewed as having asserted this theory against Enterprise, Enterprise's motion under this new theory is still successful. First, Plaintiff implicitly concedes that his new theory falls within protected activity under the anti-SLAPP statute, by failing to raise any argument with respect to it under the first prong of the anti-SLAPP analysis. Second, Plaintiff has failed to meet his burden that he has a likelihood of prevailing thereon.

A malicious prosecution requires a plaintiff to establish three elements: the underlying action was (1) initiated or maintained by, or at the direction of, the defendants, and pursued to a legal termination in favor of the malicious prosecution plaintiff; (2) initiated or maintained without probable cause; and (3) initiated or maintained with malice. (*Green Tree Headlands LLC v. Crawford* (2023) 97 Cal.App.5th 1242.)

Plaintiff argues that Enterprise's police report generated both the Napa and Sonoma prosecutions, the Sonoma County dismissal was terminated in Plaintiff's favor, Enterprise's police report lacked probable cause and was made with malice. As discussed above, Plaintiff failed to make a prima facie showing that Enterprise's police report was made without probable cause or with malice, the second and third elements of a malicious prosecution claim. As such, Plaintiff has failed to establish a prima facie showing of probable likelihood to prevail on his malicious prosecution claim against Enterprise.

Based on the foregoing, the anti-SLAPP motion is GRANTED. The alternative demurrer is therefore MOOT.

D. ATTORNEYS' FEES

Enterprise argues that it is entitled to recover its attorney's fees and costs in connection with the Motion. The "prevailing defendant" on the motion to strike "shall be entitled" to recover the defendant's attorney fees and costs. (§ 425.16, subd. (c).) As Enterprise is the prevailing defendant on the present Motion, it is entitled to recover its attorney fees and costs. The Court

does not herein determine the amount of reasonable attorney fees and costs to which it is entitled, as Enterprise states that it intends to bring a separately noticed motion thereon.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

**In the Matter of Irrevocable Special Needs Trust
For Jamie J. Cooper, Dated June 30, 2009**

21PR000283

SPECIAL NEEDS TRUST – PETITION FOR APPROVAL OF SECOND ACCOUNT, APPROVAL OF ATTORNEY’S FEES, APPROVAL OF TRUSTEES’ FEES; AND FOR SETTLEMENT THEREOF [Filed 4/9/26]

TENTATIVE RULING: The matter is CONTINUED to August 21, 2026, at 8:30 a.m. in Dept. B to allow Petitioners to remedy the following issues:

- (1) The declaration attached as Exhibit C to the Petition is missing pages 1 and 3;
- (2) The Petition and Proposed Order do not include the three statements under Probate Code section 3604, subdivision (b), which the Court must find to continue the Trust.

Petitioners to provide notice of the continued hearing to all persons entitled thereto.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Lesia K. Ward et al v. Mani NVR Napa LLC et al

23CV000033

MOTION BY DEFENDANT CHEM-AQUA, INC. TO ENFORCE SETTLEMENT AGREEMENT

TENTATIVE RULING: The motion is DENIED.

Defendant CHEM-AQUA, INC. (Chem-Aqua) moves, pursuant to California Code of Civil Procedure section 644.6, for an order granting its Motion to Enforce Settlement Agreement.

“If parties to pending litigation stipulate . . . orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6, subd. (a) (Section 664.6).)

On April 29, 2026, Chem-Aqua, co-defendant Homeyer Consulting Services, Inc. (Homeyer) and Plaintiffs stipulated orally before the Court for settlement of Plaintiffs claims against Chem-Aqua and Homeyer. (See Declaration of Lynn M. Dean, Exh. 1 at 1384:7, *et seq*

(Dean Decl.).) The stipulated settlement contains eight enumerated terms. None of these relate to an agreement, by Plaintiff, to forego making any disparaging comments about Chem-Aqua. One of the terms provided that “[t]he parties agree to execute a full and final settlement agreement in the near future and the Court shall retain jurisdiction pursuant to CCP 664.6.” (*Id.* at 1385:18-20.)

“Chem-Aqua's position is that non-disparagement is a standard term of the full and final agreement the parties contemplated, and that it is part of the settlement.” (Support Memo at 2:17-18.) “Enforcing the non-disparagement provision does not ask the Court to add a new term to the parties' bargain. It asks the Court to recognize a term the parties already agreed upon as part of the ‘full and final’ agreement they expressly contemplated.” (Support Memo at 5:24-27.)

The Court disagrees. As noted above, the stipulated agreement recited into the record contains no mention of a non-disparagement term. Moreover, Chem-Aqua fails to provide the Court with any evidence suggesting that Plaintiffs ever agreed to such term. The Court finds no merit in Chem-Aqua's argument that, because Plaintiffs agreed to a non-disparagement clause in other agreements, their agreement to such clause in *this* agreement may be inferred.

“‘The statutory procedure for enforcing settlement agreements under section 664.6 is not exclusive. It is merely an expeditious, valid alternative statutorily created.’ [Citation.] ‘Even though it is not exclusive, [section 664.6] is intended to provide a means for enforcing an agreement that requires nothing more than a single motion.’ [Citation.] ‘ ‘Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment [citations], nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.’ ’ [Citation.] As such, ‘[t]he power of the trial court under Code of Civil Procedure section 664.6 . . . is extremely limited. [¶] . . . The court is powerless to impose on the parties more restrictive or less restrictive or different terms than those contained in their settlement agreement.’ [Citation.]” (*Machado v. Myers* (2019) 39 Cal.App.5th 779, 790.)

Based on the foregoing, the Motion is DENIED.

.....
Whitney Crow v. Puneet Singh et al

23CV001513

[1] MOTION TO STRIKE ISAAC AL GHAZALI'S CROSS COMPLAINT, OR PORTIONS THEREOF

TENTATIVE RULING: The motion is GRANTED IN PART.

Cross-Defendants Puneet Singh, Eshwaramma, Inc., Laxami, Inc., and Durga Ma Inc. move, pursuant to Code of Civil Procedure sections 435 and 436, for an order striking, from the Cross-Complaint filed on May 11, 2026, by Isaac Al Ghazali (Cross-Complaint), Paragraphs 8 and 9 and the Prayer for Relief at Paragraph 10(d), as well as “[a]ny other allegations, averments,

or purported ‘causes of action’ seeking a stay as part of the pleading.” (Notice of Motion at 2:2-13.)

“The court may, upon a motion made pursuant to Section 435 . . . [s]trike out any irrelevant, false, or improper matter inserted in any pleading.” (Code Civ. Proc., § 436, subd. (a).)

Cross-Defendants argue that an operative pleading is not an appropriate procedural vehicle for a request to stay the action and, therefore, the subject prayer for relief, and allegations relating thereto, are irrelevant or improper matters. Mr. Al Ghazali appears to concede the issue by not filing anything in opposition to the Motion.

Based on the foregoing, the Motion is GRANTED IN PART. The Court, on a showing of good cause, orders the Clerk to STRIKE from the Cross-Complaint:

- a. The phrase “and STAY of Proceedings” from paragraph 8;
- b. Paragraph 9 in its entirety; and,
- c. The phrase “STAY pending ownership ruling in Case 25FL000156 (See Ex. A)” from paragraph 10(d).

[2] MOTION TO STAY CROSS-COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to August 27, 2026, at 8:30 a.m. in Dept. B.

.....
In The Matter of Selene Rodarte Vela

26CV001139

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.